



**GENERAL SERVICES ADMINISTRATION
PUBLIC BUILDINGS SERVICE
ACQUISITION MANAGEMENT DIVISION**

JUSTIFICATION AND APPROVAL FOR BRAND NAME ONLY

Project Name: Richard H. Chambers Elevator Modernization

- 1. Contracting Agency and Activity.** The General Service Administration, Field Projects Branch plans to contract by means other than full and open competition. Select One option below.

☒ Brand Name Justification (BNJ)

☐ Sole Source Justification (SSJ)

☐ Other: (Identify LSJ)

If SSJ, Annotate the following:

Vendor Name:

DUNS:

Cage:

1a. Nature of Action Being Approved is Brand Name only request for the following items:

The

The required Brand Name products for this project are:

Item Description	Manufacturer
3-Speed Exhaust Blower	Morrison Industries
AC-VVVF Power Drives	Mitsubishi, Magnetek, Yaskawa, or Torque Max
Door Operator	GAL Linear, GAL or MOVFR
Door Reopening Device	Janus, Adams, GAL, T.L., Jones, or Tri-Tronics
Electrical Travel Cables	Draka or James Monroe
Elevator Car with Counterweight Buffers	Hollister Whitney
Elevator Safeties	Hollister Whitney
Fixtures	Innovation, EPCO, ERM, or MAD
Gearless AC VVVF Hoist Machine	Imperial or Hollister Whitney.
Governor With Bi-Directional Over-Speed Switch	Hollister Whitney
Hangers	GAL Linear, GAL or MOVFR
Intercommunication/Telephones	Webb Electronics, K-Tec, Ring, Worktec, or Janus
Interlocks	GAL Linear, GAL or MOVFR
Oil Buffers	Hollister Whitney
Roller Guides	ELSCO or GAL
Tracks	GAL Linear, GAL or MOVFR
Wire Ropes	Paulsen, Bethlehem, Wayland, or Draka

2. Estimated Dollar Value.

The government estimate is \$3,800,000.00

3. If Sole Source, does Sole Source vendor hold a GSA Schedule (Utilization of FAR Part Eight (8))?

☐ Yes

☐ No

☒ N/A

(If No or N/A, skip to No. five (5)).

4. An identification of the statutory authority permitting other than full and open competition (FAR 6.303-2(b)(4)).

FAR 8.405-6(b)(1) Brand name specifications shall not be used unless the particular brand name, product, or feature is essential to the Government's requirements, and market research indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet, the agency's needs.

Use of the specified brands is necessary to ensure the Government's requirement for non-proprietary equipment is installed, and support GSA's ability to obtain parts, repairs and maintenance through the open market.

4a. If action will utilize FAR Part 8 FSS/GSA schedule, identify which circumstance justifies the LSJ action:

FAR 8.405-6(a)(1)(i)(a-c)

☐ A (Unusual and Compelling Urgency)

☐ B (Only one source Identified)

☐ C (Logical Follow-on to FSS order) (Verify justification reference in the FAR)

<http://acquisition.gov>

☒ N/A

5. A statement demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority (FAR 6.303-2(b)(5)).

The use of these specific brands rather than "equivalents" ensures that only non-proprietary equipment is installed. The same approach has been used in the federal buildings in the surrounding areas in an effort to reduce repair lead time and increase availability of parts. This will also ensure streamlined maintenance methodology can be achieved, with fewer spares needed for the same equipment types across buildings.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by FAR 5.2 and, if not, which exception under FAR 5.202 applies (FAR 6.303-2(b)(6)).

No exceptions at FAR 5.202 apply. A notice will be publicized as required.

7. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable (FAR 6.303-2(b)(7)).

The Contracting Officer anticipates the price(s) will be fair and reasonable based prior experience with the offeror. Prior to award, cost or price information shall be obtained from the contractor and a price/cost analysis will be performed and documented to sufficiently determine that the cost to the Government of the proposed acquisition will be fair and reasonable.

8. A description of the market research conducted (see FAR Part 10) and the results or a statement of the reason market research was not conducted (FAR 6.303-2(b)(8)).

Market research was conducted by the GSA's Region 9 AMD Field Projects Branch Contracting team to identify available sources and to evaluate the availability of the marketplace to meet the requirement as follows: Based on the results of market research, the government determined that a number of vendors were/are available for these name brand products.

9. Any other facts supporting the use of other than full and open competition (FAR 6.303-2(b)(9)).

N/A

10. A listing of any sources that expressed a written interest in the acquisition (FAR 6.303-2(b)(10)).

N/A

11. A statement of any actions the agency may take to remove or overcome any barriers to competition if subsequent acquisitions are anticipated (FAR 6.303-2(b)(11)).

While limiting these parts to these brand does impose some restrictions, the overall effect is fewer barriers to competition for maintenance and repair services over the lifetime of the elevators. When possible, multiple acceptable non-proprietary brands have been identified in order to broaden competition. GSA will continue to review the market for acceptable non-proprietary equivalents and revise the list new options become available.

12. Research to support the facts presented for the justification above.

GSA reviewed and considered the following:

- Complications and associated expenses resulting from past elevator projects which did not restrict the installation to specific brand names. GSA found that availability of knowledgeable repair services were often limited, and priced higher. With elevators being essential in our buildings, a lack of experienced maintenance personnel could pose an avoidable safety risk.
- Review elevator projects where "or equivalent" was used in the SOW, and the resulting determination of a proprietary item being equivalent and installed. This eliminated competition from the O&M contracts as only one vendor was authorized to work on the equipment.

- Comparison of the costs to maintain and repair proprietary vs. non-proprietary elevator machinery and parts. GSA found that O&M costs for proprietary equipment were higher. Without competition due to fewer (or only one) source being authorized to work on the equipment, GSA was forced to accept the higher costs.

13. CERTIFICATION (See, FAR Part 6.304 for approval thresholds and FAR Part 6.305 for 6.305 availability of the justification).

Technical/Requirements Personnel: I certify the requirement meets the Government's minimum need and that the facts, representations, and data included in this justification are complete and accurate.